Hi, Neighbor!

Silver Creek August 2024 Newsletter

UPCOMING CLUBHOUSE EVENTS:

Aug 7 - Ladies' Bunko Night
Dinner at 6:30, Bunko at 7:00
Please bring a prize to share

Aug 12 - Neighborhood Potluck Dinner
Dinner at 6:00
Bring a salad, side, or main dish to share

Aug 15 - HOA Board Meeting 6:30 p.m.

Aug 21 – Sit 'N Chat at 10:00 a.m.
Bring your projects to the clubhouse work on them with your friends and neighbors. No project? Still come and chat!

Sept 4 – Ladies' Bunko Night

ADULTS ONLY

At some time in the past, certain hours were observed as "Adult Swim" in Silver Creek's pools.

The practice may have seemed reasonable-– especially since adults pay the fees used to maintain the pools.

And yet, the truth of the matter is that "Adults-Only" swim times are, in fact, illegal under the Federal Fair Housing Act of 1988.

Case law established by multiple federal court decisions makes it clear that except in senior communities (Silver Creek is *not* a senior community) homeowners associations cannot prohibit children from using swimming pools, nor can they establish "Adults-Only" pools, nor can they establish "Adults-Only" times.

Silver Creek's elected Board of Trustees, in its fiduciary duty, is bound to obey federal, state and local laws as well as the Association's governing documents adopted 30 years ago.

Silver Creek's current pool access rules, updated May 2024, have no mention of "Adults-Only" swim times.

End of the story?

Not necessarily.

Here is Pool Access Rule #6 adopted in May:

COMPLIANCE WITH POSTED POOL HOURS

• Users will be in pool areas only during posted pool hours, and will observe any times and rules for specified, restricted use as may be posted.

Posted pool hours are 7:00 a.m. to 10:00 p.m., Sunday through Saturday.

The governing resolution also provides for "times and rules for specified, restricted use."

Restricted use *is* permissible, but *not* restricted use based on *age*. However, restrictions *may* be based on *defined activities*.

It *is* legal for an Association to have pool hours reserved for water aerobics, or for lap swimming, or for "serenity swim" (if you can come up with a workable definition), or for water polo, or for cannonball competition, or for just about any water activity that does not discriminate based on age.

Your board will entertain written proposals for restricted pool use hours based on a defined activity.

If that interests you, please submit with your proposal documentation of the number of owners who would take advantage such hours for the specific activity.

Our shared goal (in addition to following the law) is to enhance all owners' enjoyment of our beautiful pools.

SURE ABOUT YOUR INSURANCE?

Property and casualty insurance rates have skyrocketed in the past few years.

Your home owners' association is paying nearly 30% more this year for its comprehensive insurance coverage. That consumes a significant part of our annual budget.

The good news is that the community's policy provides generous protection to you for certain catastrophic losses that exceed $10,000.

This means, in the case of damage to your unit—that as the homeowner—you are responsible for the first $10,000 before filing a claim against the HOA insurance.

That deductible amount may be covered by your personal property insurance if you have added a $10,000 Loss Assessment Coverage rider.

The cost for this coverage is usually minimal and can provide that additional security if you ever need to make a claim.

It may be a good idea for you to review your specific coverages with your insurance agent…

Help me: How can owners see provisions of the HOA's master policy?

IS YOUR CONTACT INFO UP TO DATE?

All Silver Creek homeowners are responsible for providing the Association with their current mailing address, email address, and phone number for receiving official communications.

Please confirm that your information is complete and correct by going to your on-line HOA portal, https://camutah.com and logging in.

From the Dashbord

Select: *My Profile*

Choose: *Profile Settings*

Choose*: Contact Info*

There you can review and, if necessary, update your contact information.

Part-time residents should be sure to record their preferred physical mailing address.

You also have the option on this page of making your contact information available to other members of the Association or keeping it private.

HINT: On this page you can add an additional Contact for persons in your household who would like to receive this newsletter and other HOA communications directly to their own email account.

NEW NEIGHBORS

Welcome to the Nuttalls!

Neal and Deanne Nuttall have moved into unit #83, relocating to St. George from Lancaster, California.

Neal worked in the aerospace industry and Deanne worked in on-line customer service before happily retiring just a few weeks ago.

They say they were drawn to St. George for its mild winters, scenic landscape and community swimming pools—Silver Creek's in particular!

The Nuttalls have six children living in various parts the country, eight grandchildren, and one great-grand child.